Collective Voices
for Health Access

YOUR RIGHT TO HEALTH CARE IN SOUTH AFRICA

This flyer explains what the South African Constitution guarantees and what health services you are entitled to. It is for

everyone living in South Africa -

citizens | refugees | asylum seekers | undocumented people | internal migrants

YOUR RIGHT TO HAVE HEALTH CARE

SECTION 27 OF THE CONSTITUTION STATES:



"Everyone has the right to have access to healthcare services, including reproductive health care."

It further states that the state must take reasonable legislative and other measures to progressively make healthcare services available and accessible, and that no one may be refused emergency medical treatment.

"EVERYONE"

means all people in South Africa regardless of their nationality, whether or not they have identity documents, or what their ability to pay is.

"ACCESS"

means everyone must be allowed to use public healthcare services: no one can be turned away. However, access does not always mean services are for free.

KNOW YOUR RIGHTS – SPEAK UP FOR HEALTH CARE FOR ALL

No one should be denied care because of who they are or where they come from. Your right to health is protected by the Constitution.

If you are refused care, demand your rights and report it immediately.



You cannot be refused care because you do not have identity documents, are a migrant, refugee, or asylum seeker.

WHAT SERVICES ARE FREE AND WHICH DO I HAVE TO PAY FOR?

"Healthcare services" include those delivered at clinics ('primary healthcare') and hospitals ('secondary' and 'tertiary' healthcare).

- **Clinic Services are always free for everyone:** Immunisations, antenatal care, family planning; HIV & TB testing, treatment, chronic medication and wound care.
- **Hospital services are always free of charge for some groups of people:**
  - Pregnant or breastfeeding women
  - Children under 6
  - Unemployed people (with proof of unemployment status)
  - People living with HIV or TB who need care for their HIV or TB



Emergencies must be treated immediately without asking for upfront payment or ID.



Different groups of people must pay for hospital services depending on their income. People who earn little pay less than those who earn more.

WHERE TO GET HELP

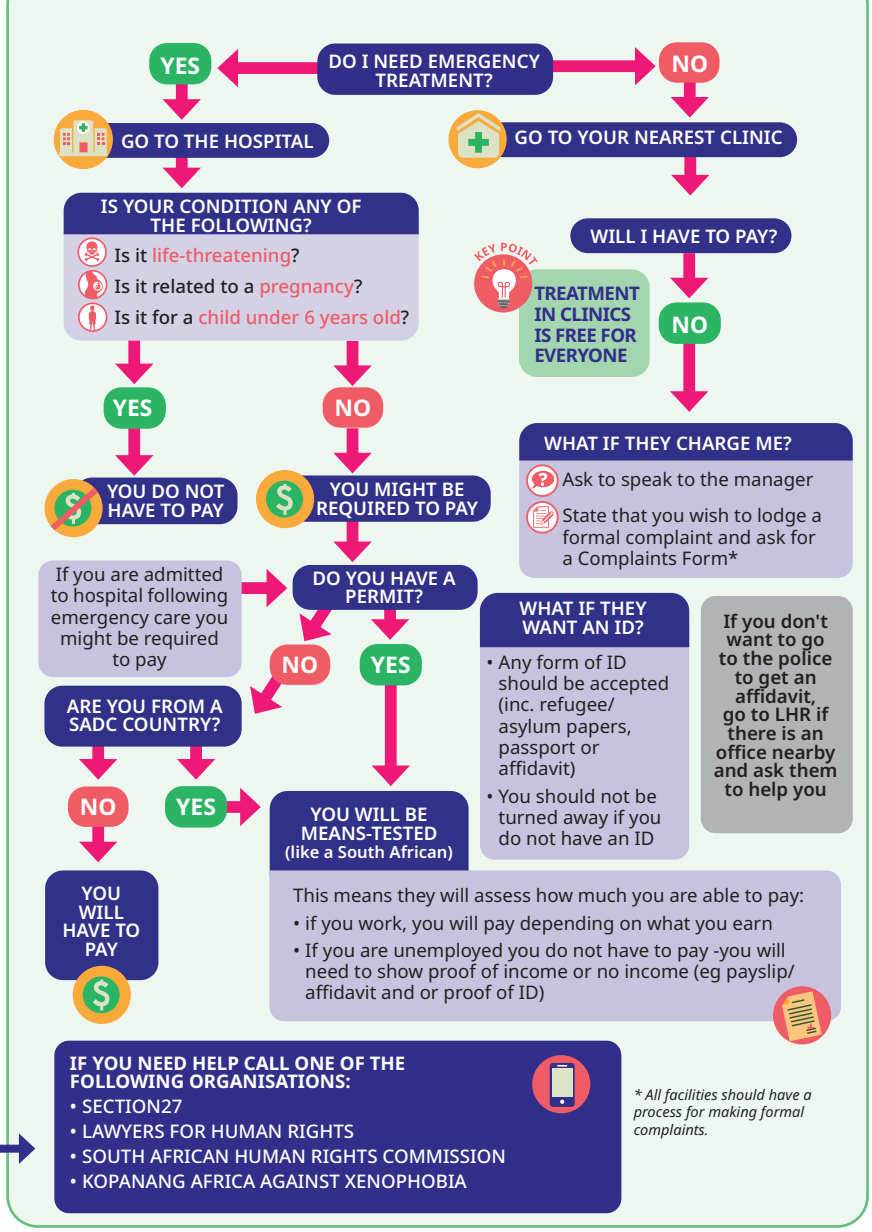
It is important that if you are denied access to healthcare or experience other challenges, such as being unlawfully charged for treatment that you access help. See the advice below:

A IF YOU ARE TREATED POORLY AT A HEALTH CARE FACILITY OR REFUSED TREATMENT WHEN YOU ARE IN A FACILITY FOLLOW THE STEPS BELOW

STEP 1:
Complaints should start at the healthcare facility - your first step is to ask to see the Facility Manager and to ask them to intervene. If they do not want to help you, ask them for a formal complaints form and the process for submitting. Take a photo of the form you submit and take the name, surname and position of the person you submit the form to.

STEP 2:
If you are unable to make a complaint at the facility or do not receive a satisfactory response, please contact one of the organisations listed here.

How to know what treatment you need and how to access it at a government health facility



B WHEN VIGILANTE GROUPS PREVENT YOU FROM ACCESSING A HEALTH CARE FACILITY FOLLOW THE STEPS BELOW

STEP 1:
Go to the nearest police station and tell them you are being prevented from accessing the clinic/hospital.

STEP 2:
Ask the police to accompany you to the clinic and to assist.

STEP 3:
If you do not feel safe going to the police then call one of these numbers:
Lawyers for Human Rights (LHR) - send a WhatsApp message to
+27 (0)64 647 4719 (Pretoria),
+27 (0)66 076 8845 (Jhb) or
+27 (0)67 258 6020 (Durban)

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LAWYERS FOR HUMAN RIGHTS

SECTION27 catalysts for social justice

TAC Treatment Action Campaign

GEMMS Gendered violence & poor mental health among migrants in precarious situations

ACMS African Centre for Migration & Society

Kopanang Africa against xenophobia

Scan here to access a booklet on all you need to know about health care and your rights (Dec 2025).